

ZAMORA, TRUSTEE v CLAPP

22CV46467

DEFENDANT’S CCP 473(b) MOTION FOR RELIEF FROM DEFAULT

This is partnership dispute involving the management of real property and two residential units thereon. On December 9, 2022, Plaintiff Dave Zamora (son and acting trustee of his father Gus Zamora’s trust) sued Defendant Clyde Clapp for breach of fiduciary duty, fraud, negligence and waste.

On June 26, 2024, the Court entered the following minute order in this matter:

The related case of 16CV41649 has fully resolved as all appellate avenues have been exhausted and an Amended Judgment was entered on 5/31/24. The Complaint has been served but not answered; plaintiff is directed to have an answer, default, or dismissal on file by the next Case Management Conference on November 13, 2024, at 1:30 p.m. in Dept. 4.

Before that November deadline, Plaintiff filed a Request for Entry of Default which was granted on October 10, 2024. At that time, counsel for both parties had been in communication and Defendant’s counsel had requested time to file the Answer and Cross-Complaint until after a trial was completed in October. Defendant’s counsel was under the impression that this timing was acceptable and was, accordingly, surprised, when he learned that default had been entered. (Declaration of Kenneth M. Foley (“Foley Decl.”) ¶¶ 8-10.)

Now before the Court is Defendant’s motion for relief from default.

A motion to set aside a default judgment under Code Civil Procedure section 473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory). Under this section, the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

The motion for relief was originally filed on October 14, 2024, and an amended motion, must be filed within six months after the clerk's entry of default. Here the motion was filed on November 14, 2024. The motion is timely.

Defendant has submitted the declaration of his attorney attesting to his surprise, mistake, or excusable neglect that the entry of default was entered before the November 13, 2024, deadline set by this Court. Pursuant to the requirements of 473(b), the Court is obligated to grant the Defendant's request for relief.

Accordingly, the motion is **GRANTED**.

The Clerk shall provide notice of the Ruling forthwith. Defendant to submit a formal Order pursuant to CRC 1.1312 in conformity with this Ruling.

CAPITAL ONE, N.A. v CHRIS PETERSON

23CF14351

PLAINTIFF'S MOTION TO HAVE MATTERS DEEMED ADMITTED

Plaintiff Capital One ("Plaintiff") sued Defendant Chris Peterson ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Requests for Admission ("RFA").

On or about August 29, 2024, Plaintiff served its first set of discovery: Requests for Admission - Set One ("RFA.") (Declaration of Gregory Parks ("Parks Decl.") ¶ 2, Ex. 1.) On or about October 18, 2024, Plaintiff's counsel attempted a meet and confer by sending the letter to Defendant regarding the outstanding discovery and offering additional time to respond. (Parks Decl. ¶ 4, Ex. 2.) As of the Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFA, nor has he filed any opposition to Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.